

HOUSE No. 4430

The Commonwealth of Massachusetts

PRESENTED BY:

Kate Hogan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act promoting agriculture resilience and sustainability.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kate Hogan</i>	<i>3rd Middlesex</i>	<i>1/16/2025</i>

HOUSE No. 4430

By Representative Hogan of Stow, a petition (accompanied by bill, House, No. 4430) of Kate Hogan relative to agriculture resilience and sustainability. Agriculture and Fisheries.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting agriculture resilience and sustainability.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The first paragraph of section 5G of chapter 29 of the General Laws, as
2 appearing in the 2022 Official Edition, is hereby amended by striking out, in lines 8 through 14,
3 inclusive, the words "90 per cent shall be transferred to the Commonwealth Stabilization Fund
4 established in section 2H; (ii) 5 percent shall be transferred to the State Retiree Benefits Trust
5 Fund established in section 24 of chapter 32A; and (iii) 5 per cent shall be transferred to the
6 Commonwealth's Pension Liability Fund established in subsection (e) of subdivision 8 of section
7 22 of chapter 32" and inserting in place thereof the following words:- 70 per cent shall be
8 transferred to the Commonwealth Stabilization Fund established in section 2H; (ii) 10 percent
9 shall be transferred to the State Retiree Benefits Trust Fund established in section 24 of chapter
10 32A; (iii) 10 per cent shall be transferred to the Commonwealth's Pension Liability Fund
11 established in subsection (e) of subdivision 8 of section 22 of chapter 32; and (iv) 10 percent
12 shall be transferred to the Disaster Relief and Resiliency Trust Fund established in section
13 2HHHHHH of chapter 29 as inserted by section 58 of chapter 140 of the acts of 2024.

(b) The fund may receive money from: (i) gifts, grants and donations from public or private sources; (ii) federal reimbursements and grants-in-aid; (iii) any appropriations authorized by the general court and specifically designated to be credited to the fund; and (iv) any interest earned on any money in the fund. The state treasurer shall be the custodian of the fund and shall receive, deposit and invest all money transmitted under this section to ensure the highest interest rate available consistent with the safety of the fund. The books and records of the fund shall be subject to an annual audit by the state auditor. The department of agricultural resources may expend money in the fund for the purposes set forth in subsection (a). No expenditure from the fund shall cause it to be in deficiency at the close of a fiscal year. Annually, the commissioner of agricultural resources shall report to the house and senate committees on ways and means and the joint committee on environment, natural resources and agriculture on income received into the fund and sources of that income, any expenditure from the fund and the purpose of that expenditure and the fund's balance. Money in the fund at the end of the fiscal year shall not revert to the General Fund and shall be available for expenditure in the subsequent year and shall not be subject to section 5C.

(c) The fund shall make eligible farmers impacted by per- and polyfluoroalkyl substances contamination. The department shall indemnify farmers that have adhered to past approved soil amendment practices.

SECTION 2. Section 7A of chapter 128 of the General Laws, as so appearing, is hereby amended by inserting after the definition of "Healthy soils practices" the following definition:-

"Regenerative agriculture", agriculture that improves the health of soils, including but not limited to consideration of depth of topsoil horizons, water infiltration rate, organic carbon

content, bulk density, biological activity, biological diversity and bare ground, and as achieved through practices such as conservation tillage or no-till, cover-cropping, planned grazing, integrated crop-livestock systems, synthetic chemicals reduction and other methodologies, and is conducted in consultation with the commission for conservation of soil, water and related resources established in section 19 of chapter 21.

SECTION 3. Said chapter 128 is hereby further amended by inserting after section 7F the following section:-

Section 7G. (a) The department shall develop a program to compensate farmers for ecosystem services, including carbon sequestration, water filtration and biodiversity protection. The program shall link payments to measurable outcomes, verified by third-party assessments.

(b) The department shall prioritize funding for: (i) controlled-climate agriculture, including the construction and retrofitting of greenhouses and controlled-environment agriculture systems; (ii) projects utilizing renewable energy or sustainable materials; and (iii) farmland preservation and access, including establishing a revolving loan fund offering zero-interest loans for farmland purchases, prioritizing historically underserved farmers.

(c) The department shall prioritize urban agriculture development by: (i) supporting the transformation of vacant urban lots into community farms or gardens through targeted grants; and (ii) expanding its urban agriculture program with funding for soil testing, season-extension infrastructure and educational programs.

(d) The department shall prioritize renewable energy and sustainability by: (i) developing agrivoltaics projects to provide incentives for solar energy projects on agricultural lands that maintain or enhance crop production; (ii) establishing funding for research on the impact of solar

installations on agricultural productivity; (iii) offering discounts under the farm energy discount program of not less than 25 per cent; and (iv) expanding grants for energy efficiency improvements and electrification of farm equipment.

(e) The department shall support agricultural education by: (i) fully funding vocational agricultural programs and on-farm internships, prioritizing BIPOC and underserved communities; (ii) providing student debt relief for graduates working in agriculture-related fields for at least 10 years; (iii) building technical assistance networks by establishing a coordinated network of agricultural advisors to provide long-term support for farmers; and (iv) funding UMass Extension to serve as a central hub for technical services and climate resilience education.

(f) The department shall reform its grant program by: (i) simplifying the application processes, including through the development of a centralized online portal for state agricultural grants; (ii) allowing self-labor and used equipment purchases as eligible grant expenses; and (iii) improving the equity and accessibility of grants, including though: (A) offering bridge loans for farmers requiring upfront payments for grant-funded projects; and (B) ensuring translation services for grant applications and outreach materials.

(g) The department shall conduct biennial agricultural surveys to collect data on land use, production and economic impact. The department shall use data collected through these surveys to assess the effectiveness of state programs and adjust investments accordingly.

(h) There shall be within the department a state agriculture resilience task force to oversee the implementation of this section. The task force shall coordinate with UMass Extension and other relevant agencies as necessary to implement this section.

80 (i) Biannually, the department shall submit to the clerks of the house of representatives
81 and the senate, the joint committee on agriculture and the joint committee on environment and
82 natural resources a report on the department's progress in the implementation of this section,
83 including metrics on funding allocation, program outcomes and stakeholder feedback.

84 SECTION 4. This act shall take effect on January 1, 2026.